

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE ALL NECESSARY DOCUMENTS RELATED TO THE TRANSFER OF A SPECIFIED PORTION OF THE PROPERTY LOCATED AT 2014 DELL RANGE BOULEVARD."

WHEREAS, on or about April 24, 1961, through the execution of a warranty deed: Frank M. Cole and F. Louise C. Cole, husband and wife; Edward G. Cole, a single person; and Lester L. Cole, a single person (the "Cole Family") conveyed to the City of Cheyenne (the "City") title to 2014 Dell Range Boulevard (the "Dell Range Boulevard property"), previously used by the City for Fire Station No. 5 beginning with the construction of Fire Station No. 5 in 1963. The warranty deed is attached and incorporated herein as *Exhibit A*;

WHEREAS, the Cole Family conveyed the Dell Range Boulevard property to the City subject to a deed restriction, which prohibited the City from holding the property should it "ever cease to be used" by the City "as a fire station". (*See Exhibit A*, at p.1);

WHEREAS, the conveyance by the Cole Family also included a reversionary clause whereby if the City should cease to use the Dell Range Boulevard property as a fire station, "the conveyed premises shall revert to the grantors, or their heirs." (*See Exhibit A*, at p.1);

WHEREAS, as a result of the 2021 November election and through the use of the voluntary one percent (1%) specific purpose sales and use tax, voters in Laramie County approved the use of taxpayer funds for the relocation and replacement of three (3) fire stations, including Fire Station No. 5;

WHEREAS, on or around March 21, 2024, the City dedicated a newly built Fire Station #5 at 4200 Converse Avenue, which replaced the previous First Station #5 at 2014 Dell Range Boulevard;

WHEREAS, following the March 21, 2024 dedication of the new Fire Station #5, the City has formally moved Fire Station #5 to 4200 Converse Boulevard and now ceases to use the 2014 Dell Range Boulevard property as a fire station;

WHEREAS, because the City ceases to use the Dell Range Boulevard property as a fire station, the City acknowledges that the property should revert back to the Cole Family under the April 24, 1961 Warranty Deed; and

WHEREAS, to effectuate the conveyance of the specified portion of the Dell Range Boulevard property to the Cole Family, the City intends to execute a Warranty Deed to the Cole Family conveying fee simple title to the specified portion of the Dell Range Boulevard property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is authorized to execute all necessary documents

related to the transfer of the specified portion of the property located at 2014 Dell Range Boulevard as described in *Exhibit A*.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

BOOK 709

RECEPTION No. 941152
LESTER R. GOPP, Recorder
WARRANTY DEED

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Frank M. Cole and F. Louise C. Cole, husband and wife; Edward G. Cole, a single person; and Lester L. Cole, a single person,
grantor S., of Laramie County, and State of Wyoming, for and in consideration of ten dollars and other valuable consideration

XXXXXX DOLLARS

in hand paid, receipt whereof is hereby acknowledged, CONVEY AND WARRANT TO The City of Cheyenne, Laramie County, Wyoming, a minicipal corporation,

grantee, of Laramie County and State of Wyoming

the following described real estate, situate in Laramie County and State

of Wyoming, hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State, to-wit: A portion of the SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Section 20, T. 14 N., R. 66 W., 6th P.M., Laramie County, Wyoming, containing three acres and being more particularly described as follows: Beginning at a point on the north R/W line of Dell Range Blvd., which point is 40 feet north and 488 feet west of the south-east corner of said Section 20; thence Westerly, along the north R/W line of Dell Range Blvd., a distance of 200 feet to a point; thence Northerly, at right angles to the north R/W line of Dell Range Blvd., a distance of 653.4 feet to a point; thence Easterly, parallel to the north R/W line of Dell Range Blvd., a distance of 200 feet to a point; thence Southerly, at right angles to the north R/W line of Dell Range Blvd., a distance of 653.4 feet to the point of beginning.

And the said grantors hereby covenant with the said grantees that they are lawfully seized of said premises; that they are free from encumbrances, and they warrant the title thereto against the lawful claims of all persons whomsoever, except the grantors reserve the right of ingress and egress across and over the described premises to other lands owned by grantors, said easement to be used by the grantors, their families and guests; If the premises hereby conveyed shall ever cease to be used by the grantee as a fire station, the conveyed premises shall revert to the grantors, or their heirs.

WITNESS hand this 24th day of April, 1961.

Frank M. Cole
F. Louise C. Cole
Edward G. Cole
Lester L. Cole

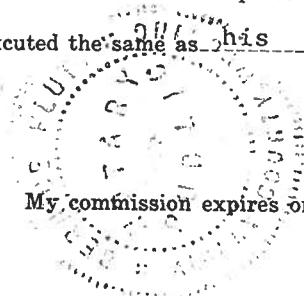
THE STATE OF WYOMING,
County of Albany } ss.

On this 24th day of April, 1961, before me personally appeared Edward G. Cole

to me known to be the person described in and who executed the foregoing instrument, and acknowledged that he excuted the same as his free act and deed.

Bernice Liberty
Notary Public

My commission expires on the 10th day of June, A. D., 1962.



The State of Wyoming)
County of Taramie)ss

On this 29th day of April, 1961, before me personally appeared Frank M. Cole and F. Louise C. Cole, husband and wife, and Lester L. Cole, a single person, to me known to be the persons described in and who executed the foregoing instrument, and acknowledged that they executed the same as their free act and deed, including the release and waiver of the right of homestead, the said wife haveing been by me fully apprised of her rights and the effect of signing and acknowledging the said instrument.

My commission expires on the 29th day of September, 1964.

Given under my hand and official seal, this 29th day of April, 1961.

Notary Public



944452

WARRANTY DEED

Witnessed by
Addressed
TO

THE STATE OF WYOMING,
County of Taramie } ss.

This instrument was filed for record at 10 35

o'clock P. M., on the 29

day of May 19 61

and duly recorded in Book 119

on Page 103

County Clerk and Ex-Officio Register of Deeds.

By [Signature] Deputy.

No. Fees, \$

Now due \$10.00
Recorded in Real Estate
Record 8, 236 16